

		Plaintiff shall give notice.
59	<i>Rager vs. Tangerini</i>	Respondent Nathaniel Tangerini's Motion to Compel Arbitration is GRANTED under CCP §1281.2. Respondent has met his burden of alleging the existence of a written agreement to arbitrate. This action is stayed pending arbitration under CCP §1281.4. Petitioner did not meet his burden proving that respondent waived his right to arbitrate [CCP §1281.2(a)], that grounds exist for rescission of the agreement [CCP §1281.2 (b)], or that there are third-party actions arising out of the same transactions or series of transactions as this action and a possibility of conflicting rulings on a common issue of law or fact. [CCP §1281. 2(c)] Without proof of any of these grounds, the Court "shall" send this matter to arbitration. The issues to be decided on a Motion to Compel Arbitration are narrow: is there an agreement to arbitrate and are there defenses to the enforcement of that agreement. As such, any other issue is not properly before the Court. Therefore, the Court does not consider requests to appoint a referee under CCP §639 or a motion for attorney's fees based upon the Arbitration Agreement. As to the latter, with the granting of this Motion, an award of attorneys' fees is within the jurisdiction of the arbitrator, and this Court may not act upon it. Moving party shall give notice.
60	<i>Shah vs. Gordon</i>	The unopposed motion by Defendant Kimberly Gurden, erroneously sued as Kimberly Gordon ("Defendant") for an order compelling Plaintiff